

		agreement. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) The arbitration agreement applies to “all claims or cause of action that the Employee may have against the Company.” (Grzywacz Decl., Ex. A, p. 1.) Plaintiff does not argue that the claims in his complaint are not covered by this provision. Plaintiff has not established the arbitration agreement is unconscionable. No admissible evidence was offered that the agreement is a contract of adhesion. To the contrary, the agreement states twice that signing it was not a condition of employment. Plaintiff has also failed to show the agreement is substantively unconscionable. No authority is cited that an arbitration agreement is unconscionable because it covers claims against third parties. While the costs of arbitration may be unconscionable if they have an impact on an employee’s ability to vindicate statutory rights, under Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 118, this is sufficiently ameliorated by the employer’s agreement to pay all of the costs unique to arbitration. This includes the arbitration filing fee. Therefore, although the arbitration agreement says that some of the filing fee is to be paid by Plaintiff, as a condition of this order, Defendant shall pay the entirety of the initial arbitration fee.
111	Le v. CUIAB, 2026-01538470	CONTINUED, OSC RE DISMISSAL SET BY COURT
112	McGrew v. Heimbuch, 2025-01535253	MOTION TO SET ASIDE/VACATE DEFAULT – GRANTED MOTION FOR LEAVE TO FILE DEMURRER – GRANTED Defendant Jeff Heimbuch (“Defendant”) moves for an order setting aside default and granting him leave to file a demurrer to plaintiff Shannon McGrew’s (“Plaintiff”)